

NEWSLETTER N. 517 of February 6, 2024

Wiretaps: Authority, more protections for data in centralized infrastructures

Authority: no to the deletion of an article from the online archive of a newspaper

Data protection officer, the Authority sanctions 4 municipalities

Work: new protections for employees' emails from the Privacy Authority

Wiretaps: Authority, more protections for data in centralized infrastructures

The Privacy Authority has approved the draft decree from the Ministry of Justice regarding the technical requirements for the management of personal data collected by centralized digital infrastructures for wiretaps. However, the Authority has requested that additional measures be implemented to protect individuals involved in the interception activities. The centralized or "inter-district" digital infrastructures were established last August and are intended not only to host the related archive but also to enable the execution of interception operations. Their creation—while maintaining the Prosecutor's autonomous direction (and thus also the responsibility) of the operations—aims to ensure, in particular, higher and uniform levels of security and efficiency in interception activities.

The draft of today's implementing decree submitted to the Authority thus defines the requirements for the storage and transmission by the judicial police to the public prosecutor of recordings and minutes, in order to ensure their authenticity, integrity, and confidentiality. Given the quantitative and qualitative relevance of the personal information processed, in giving its favorable opinion, the Authority indicated some technical and organizational measures that must be integrated to strengthen security and transparency guarantees. In particular, the regulations must provide for multi-factor authentication procedures for access to digital infrastructures, mechanisms for tracking operations performed, and alerts to signal any anomalies. These measures must be reviewed and updated periodically, based on an impact assessment that the Ministry of Justice must submit to the Authority, in order to ensure a level of security adequate to potential risks. The decree must also specify the role assumed by the Ministry of Justice regarding the management and maintenance of digital connection systems and the definition of authorization profiles for accessing the wiretap archive.

Authority: no to the deletion of an article from the online archive of a newspaper

The online archive of a newspaper plays an important role in the historical reconstruction of events that have occurred over time. This was noted by the Privacy Authority in deeming unfounded the complaint of a woman who had approached the Authority to have her personal data deleted from an article stored in the online archive of a national newspaper publisher. The woman believed that the information contained in the article was prejudicial to her and was no longer current since it concerned a judicial matter for which she had been convicted, without reporting subsequent developments. The individual had, in the meantime, served the four-year prison sentence to which she had been sentenced. The Authority rejected the complaint, explaining that the retention of the article within the publisher's online archive serves a legitimate purpose of archiving for historical-documentary interest, which, although different from the original purpose of journalistic reporting, is also provided for by the European Regulation that establishes specific limits on the power to exercise the right to deletion. However, as there are no public interest reasons justifying the continued availability of the article, the Authority has ordered the publisher to adopt technical measures suitable to inhibit the indexing of the article by external search engines to the newspaper's site. This is because de-indexing ordered by only one search engine, as occurred in this case, has the sole effect of dissociating the individual's name from the URL linked to the article, which remains retrievable using different search keys.

Data protection officer, the Authority sanctions 4 municipalities

A new series of checks on a wide range of local authorities has begun

With the adoption of four sanctioning measures [doc. web n. 9979112, 9979128, 9979152, 9979171] against local authorities, the Privacy Authority has concluded the first phase of the investigation initiated to verify compliance with the obligation to communicate to the Authority the contact details of the Data Protection Officer (DPO).

And a new series of checks has already begun, aimed at an even wider range of municipalities that

have not communicated the contact details of the DPO to the Authority.

The violation for the failure to communicate the DPO has been noted, and the Authority has imposed a fine of 2,000 euros each on three local entities, while a fourth has been fined 5,000 euros, increased because the non-compliance involved the appointment of two DPOs.

In all sanctioning measures, the Authority has reminded that, in order to comply with the EU Regulation, if the data controller is a public entity, such as state administrations, regions, provinces, municipalities, universities, or national health service companies, it is obliged to designate a DPO and communicate the contact details to the privacy authority, through the specific procedure made available by the Authority on its website.

The obligation to communicate, as provided in the EU Regulation, aims to ensure that the supervisory authority can easily and directly contact the DPO, who has among their duties the role of acting as a point of reference between the controller (or processor) of the data and the Authority itself.

****Work: New protections for employee emails from the Privacy Authority****
A Guidance Document on the retention of metadata has been launched.

Public and private employers that use programs provided in cloud mode for managing email now have new guidelines available to prevent data processing that conflicts with data protection regulations and the norms that protect the freedom and dignity of workers.

The Authority for the protection of personal data has indeed adopted a guidance document entitled "Computer programs and services for managing email in the workplace and processing of metadata," aimed at public and private employers.

The document arises from investigations carried out by the Authority, which revealed that some computer programs and services for managing email, marketed by providers also in cloud mode, are configured to collect and retain—by default, preventively, and generally—the metadata related to the use of employees' email accounts (for example, date, time, sender, recipient, subject, and size of the email). In some cases, it has also emerged that the systems do not allow employers to disable the systematic collection of data and reduce the retention period.

With today's document, the Authority therefore asks employers to verify that the programs and services for managing email used by employees (especially in the case of market products provided in cloud or as-a-service) allow for the modification of basic settings, preventing the collection of metadata or limiting their retention period to a maximum of 7 days, extendable, in the presence of proven needs, by an additional 48 hours. This period is considered adequate, from a strictly technical perspective, to ensure the regular functioning of the email used by the worker.

Employers who, for organizational and productive needs or for the protection of the owner's informational assets (in particular, for specific security needs of the systems), need to process metadata for a longer period of time must follow the guarantee procedures provided by the Workers' Statute (union agreement or authorization from the labor inspectorate). The extension of the retention period beyond the timeframe set by the Authority may indeed result in indirect remote monitoring of the worker's activity.

****THE ACTIVITIES OF THE AUTHORITY - FOR THOSE WHO WANT TO KNOW MORE****

The most important interventions and measures recently adopted by the Authority:

- Online violence, violence in the network. The Privacy Authority's Conference on the European Day – January 30, 2024
 - ChatGPT: Privacy Authority notifies OpenAI of the notice of contestation for violations of privacy regulations – Press release of January 29, 2024
 - Abandoned newborn in Aprilia, the Authority's reminder regarding the mother's video – Press release of January 28, 2024
 - Video surveillance, no to artificial intelligence that violates privacy
- The Authority fines the Municipality of Trento for conducting two scientific research projects using

cameras, microphones, and social networks, in violation of data protection regulations – Press release of January 25, 2024

- Deceptive design, an international investigation is coming

The initiative, organized by the Global Privacy Enforcement Network, is scheduled between January 29 and February 2 – Press release of January 23, 2024

****NEWSLETTER of the Authority for the protection of personal data****

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